



Bill Number: H.B. 2440

Rogers ADD COW Floor Amendment

Reference to: House engrossed bill

Amendment drafted by: Zack Dean

FLOOR AMENDMENT EXPLANATION

1. Makes a technical correction.

ADDITIONAL COW
ROGERS FLOOR AMENDMENT
SENATE AMENDMENTS TO H.B. 2440
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 31-281, Arizona Revised Statutes, is amended to
3 read:

4 31-281. Transition program; report; definition

5 A. The department shall establish a transition program that
6 provides eligible inmates with transition services in the community for
7 [ap] to NOT MORE THAN ninety days. The department shall administer the
8 transition program and contract with private or nonprofit entities to
9 provide eligible inmates with transition services and shall procure
10 transition services pursuant to title 41, chapter 23.

11 B. The director shall adopt rules to implement this article. The
12 rules shall include:

13 1. Eligibility criteria for receiving a contracted entity's
14 transition services. To be eligible, at a minimum, an inmate shall:

15 (a) Not have been convicted of a sexual offense pursuant to title
16 13, chapter 14 or a violation of title 13, chapter 17.

17 (b) Not have been convicted of a violent crime as defined in
18 section 13-901.03, unless the inmate was convicted of assault, aggravated
19 assault or robbery.

20 (c) Not have any felony detainers.

21 (d) Agree in writing to provide specific information after the
22 inmate is released. The department shall use the information to prepare
23 the report prescribed by subsection D, paragraph 3 of this section.

24 (e) Have made satisfactory progress by complying with all
25 programming on the inmate's individualized corrections plan as determined
26 by the department.

27 (f) Be classified by the department as minimum or medium custody as
28 determined by an objective risk assessment.

1 (g) Not have been found in violation of any major violent rule
2 during the inmate's current period of incarceration or in violation of any
3 other major rule within the previous six months. For the purposes of this
4 subdivision, an accumulation of minor rule violations does not equal a
5 major rule violation.

6 2. A requirement that each contracted entity train mentors or
7 certify that mentors are trained.

8 3. A requirement that the services offered to an inmate include
9 psychoeducational counseling and case management services as determined by
10 the department. The counseling and services may include substance abuse
11 treatment, anger management, cognitive behavioral therapy, parenting
12 skills and family reunification training, further education and job
13 placement.

14 4. A requirement that an inmate may be released pursuant to this
15 article only after the victim has been provided notice and an opportunity
16 to be heard. The department shall provide notice to a victim who has
17 provided a current address or other contact information. The notice shall
18 inform the victim of the opportunity to be heard on the early release.
19 Any objection to the inmate's early release must be made within twenty
20 days after the department has mailed the notice to the victim.

21 C. In awarding contracts under this section the department shall
22 comply with section 41-3751.

23 D. The department shall:

24 1. Conduct an annual study to determine the recidivism rate of
25 inmates who receive a contracted entity's services pursuant to this
26 article. The study shall include the recidivism rate of inmates who have
27 been released from incarceration for a minimum of three years after
28 release.

29 2. Evaluate the inmate and provide the information to the
30 contracted entity.

31 3. Submit a written report to the governor, the president of the
32 senate and the speaker of the house of representatives on or before
33 July 31 of each year and provide a copy of this report to the secretary of
34 state. The report may be submitted electronically. The report shall
35 contain the following information:

36 (a) The recidivism rate of inmates who receive services pursuant to
37 this article, including the recidivism rate of inmates who have been
38 released from incarceration for a minimum of three years after release.

39 (b) The number of inmates who received services pursuant to this
40 article.

41 (c) The number of inmates who were not provided services pursuant
42 to this article and who were on a list waiting to receive services.

43 (d) The types of services provided.

44 (e) The number of inmates who received each type of service
45 provided.

46 4. Provide information about the transition program to all inmates
47 who are not serving a life sentence on admission to prison and to any

1 inmate who is potentially eligible for the transition program six months
2 before the inmate's eligibility date. The information must include all of
3 the admission requirements to the transition program, including the
4 disqualifying factors under this section.

5 E. Notwithstanding subsection B, paragraph 1 of this section, if an
6 inmate agrees to comply with any condition that is established and
7 required by section 41-1604.07, subsection F, has been convicted of the
8 possession or use of marijuana pursuant to section 13-3405, subsection A,
9 paragraph 1, possession or use of a dangerous drug pursuant to section
10 13-3407, subsection A, paragraph 1, possession or use of a narcotic drug
11 pursuant to section 13-3408, subsection A, paragraph 1 or possession or
12 use of drug paraphernalia pursuant to section 13-3415, subsection A and is
13 not concurrently serving another sentence for an offense that is not
14 listed in this subsection, the inmate is eligible for and shall be
15 released to enter the transition program. The director may not exclude an
16 inmate who is eligible for the transition program pursuant to this
17 subsection because the inmate does not have a place to reside before being
18 released, except that the director shall exclude an inmate who has any of
19 the following:

20 1. Previously been convicted of a violent crime as defined in
21 section 13-901.03 or an offense listed in title 13, chapter 14 or 35.1.

22 2. A felony detainer.

23 3. Been found to be in violation of a major violent rule during the
24 inmate's current period of incarceration or to be in violation of any
25 other major rule within the previous six months. For the purposes of this
26 paragraph, an accumulation of minor rule violations does not equal a major
27 rule violation.

28 4. Previously been released pursuant to this section and violated a
29 term of the inmate's release.

30 5. Failed to achieve functional literacy as required by section
31 41-1604.07, subsection F, unless the inmate is enrolled in a program that
32 prepares the inmate to achieve functional literacy.

33 6. Been classified by the department as close or maximum custody as
34 determined by a current and objective risk assessment.

35 7. Refused enrollment in or been removed for poor behavior from a
36 major self-improvement program within the previous eighteen months unless
37 the inmate has subsequently enrolled in and completed the major
38 self-improvement program.

39 F. NOTWITHSTANDING SUBSECTION A OF THIS SECTION, THE DEPARTMENT MAY
40 GRANT A ONETIME EXTENSION OF UP TO AN ADDITIONAL NINETY DAYS FOR AN
41 ELIGIBLE INMATE TO CONTINUE RECEIVING TRANSITION SERVICES IF ALL OF THE
42 FOLLOWING APPLY:

43 1. THE DEPARTMENT DETERMINES THAT THE INMATE WILL NEED ADDITIONAL
44 TREATMENT OR INTERVENTION TO ADEQUATELY ADDRESS THE INMATE'S SPECIFIC
45 CRIMINOGENIC NEEDS.

46 2. THE CONTRACTED ENTITY THAT IS PROVIDING THE INMATE'S TRANSITION
47 SERVICES USES AN EMPIRICALLY VALIDATED, PEER-REVIEWED INSTRUMENT TO

1 EVALUATE THE INMATE'S RISK OF RECIDIVISM AND IDENTIFIES THE INMATE'S
2 PRIMARY CRIMINOGENIC FACTORS.

3 3. THE CONTRACTED ENTITY THAT EVALUATES THE INMATE PURSUANT TO
4 PARAGRAPH 2 OF THIS SUBSECTION SUBMITS AN UPDATED INDIVIDUALIZED SERVICE
5 PLAN TO THE DEPARTMENT.

6 ~~F.~~ G. For the purposes of this section, "recidivism" means
7 reincarceration in the department for any reason.

8 Enroll and engross to conform

9 Amend title to conform

WENDY ROGERS

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